9/20/2022 - Brooklyn Union Gas/National Grid - 19-G-0309/0310

STATE OF NEW YORK

OFFICE OF RENEWABLE ENERGY SITING

CASE 19-G-0309 - Proceeding on motion of the Commission as to the rates, charges, rules, and regulations of the Brooklyn Union Gas Company, doing business as National Grid New York for gas service.

CASE 19-G-0310 - Proceeding on motion of the Commission as to the rates, charges, rules, and regulations of the Brooklyn Union Gas Company, doing business as National Grid New York for gas service.

PUBLIC STATEMENT HEARING

DATE: September 20, 2022 at 1:01 p.m.

VENUE: WebEx

BEFORE: A.L.J. JAMES A. COSTELLO

A.L.J. MAUREEN F. LEARY

ALSO PRESENT:

JOHN MAGGIORE, Commissioner

Reported by Anthony McClain

(The hearing commenced at 1:01 p.m.)

THE REPORTER: We are on the record.

A.L.J. LEARY: Thank you. I call case 19-G-0309 and case 19-G-0310, proceeding on motion of the Commission as to the rates, charges, rules, and regulations of the Brooklyn Union Gas Company doing business as National Grid New York for gas service.

Good afternoon, everyone. My name is Maureen Leary. I am an Administrative Law Judge with the New York State Department of Public Service. I will be presiding over this afternoon's public statement hearing with my friend and colleague Administrative Law Judge James A. Costello.

This hearing was the subject of a notice issued on August 29th, 2022, by the Secretary to the New York State depart -- Commission, copies of which are available on the Department's website. And I'm going to repeat this information a couple of times for those of you who have not visited that website.

A lot of information about this proposal is available there. It's www.dps.gov. And there is a search function and you enter the case 19-G-0309 or 19-G-0310 in order to gain additional

information about this proposal. Working with us this afternoon, are representatives of the Department of Public Service Office of Consumer Services.

Many thanks to Sangeetha Kala -- Kailas, Maribel Rivera, Joe Wasser, Esmin Brown Anderson, and Aaron Odel Keller. I want to express to all of the participants that this hearing would not be possible without them.

We are also very fortunate to have Commissioner John Maggiore attending this afternoon's hearing. Commissioner Maggiore, I'd like to introduce you and give you the floor to make any remarks if you'd like.

COMMISSIONER MAGGIORE: Thank you very much. I am pleased to be here. I'd like to thank everybody who is turning out to participate. As a Commissioner, I find public statement hearings to be very informative and very helpful for me to understand how items that come before us affect people's lives.

I know the topic of today's hearing is very consequential and important to many people, and I'm really here to listen to you. So this is the last time you're going to hear from me, but I'm very

interested in what you have to say. And again, I'd like to thank you for turning out and participating. Thank you very much.

A.L.J. LEARY: Thank you, Commissioner Maggiore. I'd like to echo the Commissioner because I want to thank all of the participants in this afternoon's hearing because I know I can speak for the Department and the Commissioners in saying that civic engagement takes time and your time is valuable, but it is so critically important in our State and in our democracy. So thank you so much for being here.

I want to tell you, what's going to go on, and then, I'm going to turn the presentation over to the company to give you additional information about their proposal. But let's talk about some logistics. So as I said, the company's going to give you some information; that will be followed by a question and answer period.

So if you are participating by WebEx and you have a question for the company, please use on your computer the raised hand function, which you should see at the bottom right-hand corner of your screen. And if -- and here's a slide that will show

you what it looks like. Press the raised hand function, and we will advise you by name that your line has been unmuted. And that you can then present your question to the company.

But remember the questions must be directly related to the vaporizer proposal. They shouldn't stray into other projects, or your utility bills, or the rates. Although, if you hear something from the company about the proposal with respect to increases, potential increases to your bill, they are certainly fair game.

We will immediately file the question and answer period with the beginning of the public statement hearing at which you, registered participants can provide comments about the proposal. I want to briefly describe the proposal just so you understand really what this hearing is and is not about.

It is really a request for the Commission to approve the recovery of the costs from customers for the addition of 2 vaporizers at the company's Greenpoint Liquified Natural -- natural gas facility. And it's important for you to know that the company has studied its proposal and has

determined that it is needed for the continued service of customers.

And one other critically important fact is that the Commission has ordered, and the company has agreed that this proposal will be subject to review by a qualified independent consultant. So there'll be some fresh eyes on the proposal. And in that review, the independent consultant is required to apply certain criteria including your comments, public input.

In addition, other criteria includes the cost of -- of the addition of the vaporizers, the reasonableness of forecasted demand for energy, the -- and overall need. The potential greenhouse gas emissions, the safety and reliability benefits that may be provided by the addition of these vaporizers and other viable alternatives that would meet or eliminate the evident demand at a lower cost.

What happens then? Well, after the independent consultant applies this criteria, a -- an independent written report will be submitted directly to the Commission. That report will contain an analysis and recommendations regarding the proposal. And that report will be publicly available on the

Department's website, www.dps.gov.

And it'll be, it will be filed about 45 days from the date the vaporizer proposal was filed by the company or by around October 15th, 2022. The company may correct my date. So please stay tuned to make sure that is correct. For those of you who have not visited our website, again, the critical numbers you need are 19-G-0309 or 19-G-0310. That's how you can get a copy of the report.

So what next? Well, if the independent -- independent consultant's report confirms the need for the vaporizers after considering all the criteria, the Commission will issue an order authorizing the companies to impose what is called a demand capacity surcharge on customers and recover the cost of the -- of the project.

But there is another part of this process that's very important for you to know about. And it involves another separate State agency's approval, namely, the Department of Environmental Conservation or D.E.C. And D.E.C. is currently considering whether these vaporizers, these 2 should be granted an air pollution control permit.

Now, that process also involves public input. As many of you know, you can check D.E.C.'s website at www.dec.gov to get further information on participating in that process. I'm now going to turn to the company to begin the information session. Mr. Phillip Decicco, the company's representative will be presenting information about the project and Mr. Decicco, are you ready to go?

MR. DECICCO: Judge, I just kind of, yeah, absolutely. Can you -- can you hear me okay?

A.L.J. LEARY: Yes, we can.

MR. DECICCO: Great. Well -- well, thank you so much, Judge Leary for that -- for that very thorough introduction. As the Judge mentioned, my name is Phil Decicco and I represent National Grid. And I want to first echo the thanks for -- for participating in this session and for your continued engagement on these important topics.

As I've said before, public feedback really now, more than ever shapes our approach to serving customers and this meeting is yet another opportunity for -- to hear customer feedback and -- and to hear your views and allow that to -- to inform our -- our -- our proposals for shaping future energy

needs.

National Grid serves nearly 2 million customers in Downstate New York. These are customers who rely on us every day to heat their homes, and cook food, provide the energy that enables businesses. And today, we'll be discussing a project as the judge mentioned at our Greenpoint Brooklyn facility that is key to our plans for meeting those customers' energy needs.

And the Judge described the website that we have. There was a tremendous amount of information. It would not be possible for us to -- to address everything that we've discussed through the various reports and assessments of this project, but we're going to try to hit some of the highlights.

But would certainly recommend if you have more interest or want to get to more details to -- to -- to look at the website in terms of just the -- the information available on that. So let's just start with some background and -- and sort of try to explain why it is that we were here.

In 2019, we made commitments to New York State and to our customers. We said that we would find solutions that allowed us to continue to

connect customers in the near term, and that we would solicit stakeholder feedback in developing longer term solutions to meeting energy needs.

And we did that through a public process that presented a range of options. We considered factors like reliability, affordability, environmental impacts, and community impacts. And we heard feedback that strongly supported programs like energy efficient -- energy efficiency to reduce demand instead of projects that would increase supply.

With that feedback, we developed an approach that relies heavily on programs like energy efficiency, weatherization, demand response, and electrification to reduce our customer's energy consumption. We coupled that with a small portfolio of what effectively are non-pipes options to support near term safety and reliability on our gas system.

And one component of that plan is the Greenpoint vaporizer project. As you will hear, the project allows us to use existing Greenpoint storage assets more efficiently. That involves no new gas supply, will only operate on a handful of days when needed to serve our customers, provides unique

reliability benefits, and is more efficient and consumes less energy than the existing units at the site.

As the Judge mentioned, in addition to the Public Service Commission review of this project, the project requires the air permit from the New York State Department of Environmental Conservation. We are actually requesting a downgrade to the current permit, but that will be addressed separately after this process.

So before we get into the project itself, I just want to provide a little more background as to why we need this project. And if you could go to the next slide, please.

Our forecast of customer demand drives all of our planning. We use the forecast to develop models that tell us whether our system is capable of meeting energy needs on the coldest days of the winter. And that's important because the consequences of not having heat for our customers on -- on the coldest days of the winter, it's just critical safety and reliability -- excuse me, critical safety, and health impacts.

We cannot allow our -- our -- our

system not to be available when our customers need it the most. And so our forecast considers customers usage, it looks at economic data, things like housing and construction data to anticipate those future needs. Our current forecast is -- is projecting increased demand -- I'm sorry, just stick on the last slide -- the last slide, please.

Our current forecast is projecting increased demand for the near term, which begins to flatten as energy efficiency and -- and energy policy reduces demand in the future. But again, we need to build a system that's capable of meeting the forecast that we have. And -- and so we need to know that when our customers turn on their thermostat, that they will have heat to heat their homes in the coldest days of the winter.

That said, I want to be perfectly clear. This forecast is not our goal. We are trying very hard to bend this curve down. In the first place, because using less gas aligns with our vision of a sustainable energy future. And we want to focus on delivering the demand-side solutions that our customers told us they want us to -- want to see us doing.

Our stakeholders want energy efficiency. They want demand response. They want to consume less energy and we want to be there to support that. And that's why we've made changes to our rate mechanisms, eliminate financial incentives around customer growth, and instead we have incentives now for lowering gas usage and outperforming on our energy efficiency targets.

We are not marketing gas, and we've eliminated all customer incentives for gas conversions. Instead, we are promoting alternatives. If you apply for gas service today, we will tell you about other options, including highlighting opportunities to apply incentives to -- to lower the cost of electrification. And we've seen good progress. Now, if you can go to the next slide, please.

We are investing more than 150 -- excuse me, $140 million in demand reduction programs under the terms of our rate plan. And this year, we've secured approval from the Commission to do even more. Our approach increasingly relies on weatherization programs, which provide benefits to our customers no matter how they choose to heat their

home, including if they choose to electrify.

We are targeting programs at our low and moderate income customers to help them manage their energy burdens. There is simply no better solution for lowering bills and lowering emissions than enabling our customers to use less energy, and we're really focused on delivering those programs.

And our commitments in this area are more than just proposals. They're more than just aspirations. We've set ambitious targets, and there are significant financial consequences if we don't meet those targets, including that we would not recover the costs of the projects we're proposing like the Greenpoint vaporizers.

But so far we have hit those targets. We've exceeded our energy efficiency and demand response target in the energy efficiency area. We've achieved over 2-and-a-half times as much annual energy savings as we did just 5 years ago. Our demand response programs eliminates the equivalent gas use of approximately 150,000 residential homes on a peak day, and those programs are growing rapidly.

We're also referring prospective gas customers to electrification and exploring options to

deploy more non-pipes alternatives. These are challenging targets, so much so that it's very possible we will not continue to make them going forward, but I assure you, it's not for lack of effort.

But we can't yet rely on -- on demand side solutions exclusively. We have a core mission and that is to deliver safer, reliable service and that still requires some amount of -- of investment in our system. We just need to make sure we're doing it smart. So the next slide, please.

As I have said many times, you know, we are appreciating the need to calibrate our approach to capital projects going forward and to prior -- to prioritize non-pipes alternatives. We also recognize the need to enhance transparency. So we have, as part of the process we're currently involved in, committed to undergo further assessment by a qualified, independent consultant selected by the Department of Public Service.

As the Judge mentioned, the independent consultant will consider several factors including safe and reliability benefits, greenhouse gas emissions, customer costs importantly, public

comment and feedback among other factors.

Again, I think it's important to emphasize, we included these provisions in our rate settlement because it's important that we, 1) validate the need for the projects that we say we need. Stand behind our commitments to deliver alternative solutions, and very importantly, support greater stakeholder engagement like you're experiencing today.

So with that, I'm going to turn it over to my colleague. Chris Connolly is going to talk more about the project specifically. Chris.

MR. CONNOLLY: Thank you, Phil. Good afternoon folks. My name is Chris Connolly. I am the Vice-President of Gas Network Operations. I have responsibility for all of our U.S. L.N.G. assets across National Grid's U.S. footprint. So if you turn to the next slide, please.

Let me start with covering a few of the basics. What is Liquified Natural Gas or L.N.G. as we refer to it? L.N.G. is a cryogenic, colorless, odorless liquid stored at atmospheric pressure in tanks at minus 260 degrees Fahrenheit. L.N.G. occupies 1/600th of the volume of in the liquid state

as it would in the gas state.

A process called liquefaction and liquefaction is really a -- a fancy term for, you know, the process of cooling the gas to a liquid utilizing onsite equipment for efficient storage inside the tanks. So when you think about the tanks that we have at our Greenpoint L.N.G. facility, they act as very large thermoses that keep that L.N.G. cool and operating at atmospheric pressure.

During very cold weather, typically approaching 15 degrees Fahrenheit, that liquid is drawn from storage from the tanks on site and the gas -- the liquid is reheated to approximately 40 degrees Fahrenheit, a term what we refer as vaporization and that gas is reinjected into our distribution system to meet our customer needs.

The storage that we have at Greenpoint provides us approximately 5 days if we're heating the gas and sending it out into the system continuously at full capacity of the current plan. An important highlight here that we do take gas from the existing distribution system during the warmer months to fill our tanks on site, and that process liquefaction requires approximately 220 days to fill the tanks

from empty.

A little bit of specifics about the site itself. If you could stay on that slide, please. The site in Greenpoint occupies approximately 50 acres. Tank 1 was constructed in 1968 and tank 2 was constructed in 1971. The total storage we have on site is 1.6 billion cubic feet of -- of liquid.

And liquefaction, as we already refer to it, you know, the process of cooling gas and peak shaving through our vaporization process, heating the gas or reheating the gas is done through an existing 6 water bath vaporizers that we have on site, 3 of which that -- that provide service into our high pressure distribution system and another 3 that provide service into our low pressure distribution.

Important to note here that the 3 vaporizers that currently provide service into the high pressure distribution have redundancy. So we only operate 2 vaporizers at a time. And that's important because the pump capacity that we have to support the needs of our system is -- is limited.

On the low pressure side, those 3 vaporizers, there is no existing redundancy. So as

we look forward to the project, vaporizer 13 and 14, we will be adding 2 vaporizers, one of which will be a redundant vaporizer for reliability and that's important.

And again, the last point here I'll emphasize is that over our 50-year history of operating L.N.G. facilities, we've done it safely. We've done it reliably. In the north-east, we sit at the end of the pipelines, and as such the pipelines don't have enough capacity to support all of our winter needs for our customers.

Therefore, we rely heavily on L.N.G. to ensure that we can maintain service to our customers reliably on those coldest days of the year. Could you go to the next slide, please?

I'll talk a little bit about here about how L.N.G. supports customers' energy needs, right. We talked about beyond system supply resource. L.N.G. helps meet our supply demands on the coldest days of the winter, that coldest day of the winter, what we refer to as our design day. On those coldest days, L.N.G. represents 11 percent of the total natural gas utilized on our system on that coldest day of the year design day.

So L.N.G. enhances our supply reliability. It helps mitigate price volatility for the market. And it provides for efficient local storage of that supply. L.N.G. is also used as a balancing resource, and it allows us that flexibility to use L.N.G. to support our customers.

The L.N.G. plan allows for fast response time during those peak periods of demand, during those morning hours when folks are getting up, they're getting ready for school, they're getting ready for work, they're cooking breakfast, they're taking showers, they're turning up their thermostats to be ready for the day, businesses as they get ready for their employees, as they open for business, you know, that's our -- that's our peak period of demand where L.N.G. provides that additional benefit and support to ensure reliable operations.

I mentioned, you know, we have full control over utilization of this asset. The plant is used infrequently, but huge -- highly important that when we do need it, that plant comes up and running and supports our customer needs. And it also serves as a backup for our upstream pipeline supplies should they be interrupted.

And then the last point I'll make here is that it's a distribution system resource. So again, I talk about those morning hours, those peak periods of demand, where we're able to stabilize system pressures. Again, to ensure that we can meet all of our customer needs and support the system when pipeline maintenance is occurring. Could you go to the next slide, please?

So our vaporizer project. National Grid identified this opportunity through a myriad of options that we looked at and explored and important that we're -- we're -- we're utilizing the existing L.N.G. facility and we're further leveraging the existing infrastructure that we have in addition to adding the low pressure vaporizers to support our customers.

So the additional increase here we would -- we would see an increase of capacity by 60 M.D.T. per day. This enables us to have more efficient extraction of the L.N.G. from the tanks enhancing the plant's ability to utilize the existing inventory to meet peak demand on those coldest days of the year.

This project does not change how much

liquid is stored on site. It doesn't change the capacity by which we're able to feed out into the system. The construction project is approximately an 18-month construction timeline. And -- and as I mentioned, we have a long history of operating our L.N.G. assets safely and reliably.

Turning to the schematic here. This is a very simple schematic that talks about how the process of cooling the gas, storing the gas in the tanks, and then reheating the gas, and sending it out into the distribution system. And important that the gas, again, that we store in the tanks comes from our distribution system. It's cooled to minus 260 degrees Fahrenheit. It's stored in those tanks and then, utilized when it's needed most.

So the L.N.G. is pumped from the tanks and it's sent through a vaporizer, really a unit that heats that liquid to a gas, and it's sent back out into the distribution system. In this case, vaporizer 13 and four -- 14 will support our -- our 60-pound distribution system or our -- what we refer to as our low pressure distribution system out -- out in the -- out in the area.

So -- and if we go to the next slide,

please. And I'll highlight here again, why are the vaporizers the best option, right? So we're required to ensure that we can meet peak periods of demand. And these new vaporizers, as I mentioned, do not add additional supply, or cause the plant to operate more frequently. And the history over the last 5 years is that we've operated this plant anywhere from 2 days to 14 days over the past 5 winters.

But again, hugely important, utilized infrequently, but important when we do need it to ensure that we can maintain reliable operations for our customers. Vaporizers are simple in -- in their design, and they're very reliable and National Grid has extensive experience operating these assets and provides that critical on-system benefit.

In terms of project costs, the project is estimated at $65 million and that leverage is the existing L.N.G. facility that we have. And these costs compare very favorably to other projects that would involve more infrastructure and associated operating and maintenance costs for the life of the asset.

Environmental. Again, I spoke about the intermittent peak usage compares favorably to

other options. So our permit conditions actually cap the nitrogen oxides to less than 25 tons per year. So this ultimately cuts in half the existing permit that we -- that we have today at the L.N.G. at the Greenpoint Energy Facility.

Emissions, these vaporizers are the most efficient vaporizers that can be purchased. They are more efficient than the existing vaporizers and will decrease natural gas consumption from the facility's vaporizers, reducing direct greenhouse gas emissions.

And then finally, you know, around the communities, all planned construction and installation is within the existing L.N.G. plant footprint, which is much less disruptive than alternate projects that have been considered as part of this. So with that, I'm going to turn it back to Phil to finish out the presentation.

MR. DECICCO: Yeah. Great. Thanks, Chris. And I just want to sort of end where we started, which was we made commitments that we would find solutions to meeting our customers' energy needs. We've agreed to submit those solutions to further independent review because we believe these

are the right projects and are critical for serving our customers.

And to demonstrate that commitment, we are conditioning our cost recovery on the results of that assessment. We're also conditioning it on our -- on our ability to deliver energy efficiency and demand-side solutions. You know, really the programs and the projects that we heard our customers say they want to see us focused on.

As the Commission's noted in its review, this goes well beyond what typically is required for a project. And but we're willing to do that because we think this is the right thing. And we hope, when you see our analysis, when you understand what we're trying to achieve here, and the important benefits this project provides you'll agree.

In terms of the next steps, the Judge outlined this. The parties and members of the public will have the opportunity to submit written comments to the Commission's website, which we encourage you to do as soon as possible so they may be considered as part of this process. You also obviously have the opportunity to participate in these public meetings

and have your comments submitted on the record.

After the report is filed by the independent -- independent consultant, And upon the Commission's review, the Commission will -- will issue an order determining whether we are able to recover the cost of these projects. And as the -- as the Judge noted, there will be a separate consideration of the air permit application that is pending with -- with the New York D.E.C.

I want to, again, thank you for your attention and for your engagement on these issues. And we look forward to hearing your feedback. Thank you so much.

A.L.J. LEARY: Thank you to the company's representatives, Mr. Decicco. I want to correct something that I, in an attempt to get to the information session probably abbreviated too quickly in the description of what the independent consultant is going to do, what will happen next?

So the independent consultant may confirm the need for this project and recommend it, or the independent consultant may say, hey, it's not needed. In either case, the Commission, even if the independent consultant confirms the need for the

project, the Commission is still free to make its own determination to decide that it is not needed at this time or by -- or by issuing an order, the Commission could approve the project.

So I wanted to make sure that everyone more clearly understood what that process was going to be. And certainly, the need or the need for your input because the independent consultant is listening to what the public is saying. That's one of the criteria as -- as are the members of the Department staff.

So everything stated during this and other public statement hearings form a part of the record that will be subject to the Commission's consideration. So let me turn for a moment to discuss the nature of this hearing, what it is and what it isn't, because I think some of you may be new, some of you I know are not.

So this is not an evidentiary hearing at which witnesses are called and cross-examined and evidence is admitted. This is solely for the purpose of hearing your comments and creating a forum in which you can ask questions and have them answered of the company. So let's right now turn to that aspect

of the information session. That is the question and answer period.

What I'm going to do is ask people who have questions for the company to use the raised hand signal on your computer. And if you are calling in by phone, I see we have several call-in users. You can do the same thing by pressing star D. No, I'm sorry, star 3 on your telephone and we will see that your hand is raised as a call-in user.

So let me give everyone a minute to see if we have any questions from participants. Not seeing anything right now. Ms. Kailas, do you see anyone with questions?

MS. KAILAS: Yes, we have a Monique Roberts and I have unmuted her line, and then, after that we have a Stephen Chestler.

A.L.J. LEARY: Perfect. Go ahead. And Ms. Roberts, will you state your name, please state your full name and then, spell your last name for the court reporter.

MS. ROBERTS: Okay. Hi! Everyone. My name is Monique Roberts. Roberts is spelled R-O-B-E-R-T-S. I've been talking with many community members who would be along this pipeline who also

have questions, and I have a question today, so I'll raise that.

In the presentation, something that came to mind was just how is gas getting in and out of the facility to allow new vaporizers to provide enough liquid natural gas for the demand? How would this not be a, a pipeline option is my question?

MR. DECICCO: Yeah. Thanks for the question. We say that it's a non-pipeline alternative. Really, what we mean fundamentally is we are leveraging existing assets. So we are using these new vaporizers to -- to more efficiently extract, as Chris described, L.N.G. from a tank that would already be filled with existing facilities.

So we're not adding new pipes to do that. We're not adding new supply. Really, this is just the mechanism that allows us to take gas out of the tank, but Chris, do you want to just maybe talk a little bit more to that question?

MR. CONNOLLY: Yeah. I think that's fair. Thank you, Phil. And appreciate the question. So really just building on what Phil said, this -- this project does not require any new infrastructure outside of the Greenpoint L.N.G. facility.

So no new gas pipes installed in -- in the roads. This project is very limited to the installation of -- of two new vaporizers or again, what I refer to, you know, very simply as heaters, right, that ultimately will heat the liquid and send it back out into the existing system that we have with no change to that system.

A.L.J. LEARY: Okay. Let me just be the intermediary here. I believe Ms. Roberts is asking the question, which is how is gas getting in and out of the facility. It clearly is not getting in by pipeline, but how is it coming in?

MR. CONNOLLY: So the gas actually does come in from an existing line connected to the plant, which is --

A.L.J. LEARY: Oh, I see.

MR. CONNOLLY: -- part of the distribution system. So that is a -- a, you know, high pressure line that feeds directly into the facility and has been in existence since, you know, since the plant was constructed.

A.L.J. LEARY: Got it. Ms. Roberts, does that respond to your question?

MS. ROBERTS: Yes and no, in that the

community members that I've spoken to, there's already been a lot of construction to create more of a pipeline that you're talking about that would bring the gas in. So to say that, you know, no new construction is happening doesn't feel like a -- a true response.

A.L.J. LEARY: Well, let's see if we can clarify for you. Mr. Decicco.

MR. DECICCO: Yeah. So -- so to be clear, I mean, we are -- we are constantly investing to modernize our infrastructure and -- and upgrade our facilities. You know, we're a distribution company and that requires that our networks connect literally to our customers homes and businesses because we're -- we're in the business of -- of delivering energy directly from the facilities.

That requires us to -- to invest. And so, yes, we are doing work all over our system, you know, every day to make sure that we're able to deliver energy more safely and more reliably. But for this particular project, you know, the benefits that we're able to extract from the vaporizers were not the result of putting new pipes in the ground.

Again, the project does not involve

adding a single additional molecule of natural gas to our system. What it does do is allow us to use the existing tank and the existing gas supply more efficiently. And that's really why we're saying, you know, when we considered the options, we heard very clearly that more pipeline supply options were not what our customers wanted to see us do.

That required us to go back and look at other options and look at assets we already had and ways in which we could use them better and more efficiently. And so when we say this is not a pipeline project, we mean that we're not investing in pipeline supplies. Now, that was the option that was -- was clearly disfavored.

This is an option that allows us to -- to again, use what we already have, but use it in a way that's smarter, more efficient, and actually lowers emissions at the end of the day because of these units consume less energy.

A.L.J. LEARY: Thank you. Okay. Our next question, Ms. Kailas, let's see. Steven Chesler.

MR. CHESLER: Yes. Thank you.

A.L.J. LEARY: Your -- your line is

unmuted.

MR. CHESLER: Okay.

A.L.J. LEARY: Would you please state your name and spell your last name for the court reporter?

MR. CHESLER: It's Stephen Chesler, last name is spelled C-H-E-S-L-E-R. And the question regarding moving L.N.G. out of the facility to other locations, either within North Brooklyn or beyond, if that -- that required trucking and or shipping via, you know, via water, if, you know, if that's something that's currently happening and it'll potentially expand with if these 2 new vaporizers were added to the facility?

MR. DECICCO: So that's a good question. You know, the new vaporizers are intended to allow us to use this gas on the premises and -- and support the system, you know, that -- that we serve in -- in Brooklyn Queens. But why don't I -- Chris, do you want to handle that question?

MR. CONNOLLY: Yeah. Happy to. Thank you, Phil. So it's a great question. So important to share here that in New York City, we are not allowed by law to truck Liquified Natural Gas through

the city. So that -- that's not a practice that we have or a practice that we've used since the -- since the 1970s, when we had an emergency order for an emergency need to truck L.N.G. into Greenpoint.

So this project has -- has no connection to truck L.N.G. or barged L.N.G. or -- or L.N.G. that would be shipped in or shipped out, you know, by other means. Important to highlight and -- and make that distinction that we have no plans to, you know, truck L.N.G. into or out of the National Grid facility in Greenpoint.

And that we would continue to operate the facility as we have for a number of years and that, you know, the fact that we make our own L.N.G. on site. So again, we take gas from the connected distribution system, and we cool that gas, and we liquefy it on site, and we store it in those large tanks, which act like a thermos.

And then, we utilize and reheat that liquid during the winter months when our customers need it. So there was no plan for any trucking or -- or barging or -- or moving, you know, in any means other than what we described as part of this project.

A.L.J. LEARY: Thank you. I want to

ask both Ms. Roberts and Mr. Chesler to remember to hit your hand icon again so you lower your hand because -- great. Thank you. I believe the next person is Sarah Gronim.

MS. GRONIM: Hi, thank you.

A.L.J. LEARY: You know, Ms. Gronim, I'm going to have to mute your line, re-mute it. Thank you. So Ms. Gronim, one of the things that sometimes happens is interference because you may have your computer and your phone both going at the same time.

So you need to choose your device so that we don't hear that crackle because the court reporter won't be able to take down your statement. So I'm going to move on and ask you to figure that out and I will call you next. I apologize, but the feedback was -- was pretty pronounced.

So our next question is from Anjana Malhotra. I hope I said that right. Your line is unmuted. Would you please state and spell your last name for the court reporter?

MS. MALHOTRA: Sure. Absolutely. My name is Anjana Malhotra and my last name is spelled M-A-L-H-O-T-R-A. And I'm an attorney that works with

communities who live around the North Brooklyn pipeline. And I have a couple of follow-up questions. Thank you for your presentation, it's very helpful.

So just to follow up, my understanding from reading some of the documents in the rate case, specifically docket number 131, Exhibit 735, is that in order for the L.N.G. facility to -- that the L.N.G. expansion to distribute gas, there was going to be an additional new pipeline installed as part of phase 5 to connect the Brooklyn backbone and the north -- the North Brooklyn pipeline to the L.N.G. facility.

So my understanding was that the current, according to this document, the current pipeline going from the L.N.G. facility is only 12 to 18 inches and can only go one way. And the whole point of adding additional pipeline in the phases 1 through 4 of the same project was to transport additional L.N.G. to and from the L.N.G. facility.

And -- and that is the distribute -- that construction is part of the distribution network that will be transporting gas to and from the facility. Can you clarify that? Is that still the

case that this phase 5 includes a new pipeline that will be connected to phases 1 through 4 and -- and the larger Brooklyn distribution network?

MR. DECICCO: Yeah. And -- and I, first of all, appreciate you raising this question because I think this is often the subject of some confusion. The M.R.I. pipe that you described, the project is -- is completely separate from the vaporization project. And I'm going to turn it over to Chris and or Pete Metzdorff to -- to handle that sort of just describe technically, you know, how it is these projects are -- are different and distinguished.

MR. CONNOLLY: Thank you, Phil. So I'll start, and then, I'll ask my colleague, Pete, to give some more details, but important to highlight here that for vaporizer 13 and 14, this project will allow us to heat gas and send it into our low pressure distribution system. The project that you're referring to is our M.R.I. is actually our high pressure distribution system.

So these vaporizers are not connected in any way to that system, and that project that we've now completed phases 1 through 4 and the

proposed phase 5 is -- is paused. And -- and I'll turn to Pete to give some additional details on that.

MR. METZDORFF: Sure. Thank you, Chris. So with regard to the -- the line that runs in and out of Greenpoint, it is a bi-directional line and it carries natural gas. It does not carry L.N.G.. There is no piping that goes into or out of the facility that carries L.N.G. Everything that goes into or out of that facility is -- has natural gas in its gaseous form.

Vaporizers 13 and 14, along with 3 of the existing vaporizers in Greenpoint are connected to a, as Chris noted, to 60 P.S.I. the low pressure distribution system. It is -- that 60 P.S.I. system operates at a different pressure than the high pressure system.

So the vaporizers cannot physically inject gas into the high pressure system that the M.R.I. project phases 1 through 4 is connected to. M.R.I. phase 5 was intended to connect on that high pressure system from M.R.I. phase 4 to create a loop around the line that goes into the plant currently, but it would provide redundancy.

And again, it would only, even if it

was constructed, it would only carry natural gas. It would not carry L.N.G. and it is on hold, as Chris mentioned.

MS. MALHOTRA: Okay.

MR. METZDORFF: Hope that answers the question.

MS. MALHOTRA: So just to be clear, that phase 5 connection to phase 4 is still part of -- is still under consideration, that additional pipeline is still under consideration. Is that right?

MR. DECICCO: I would say we -- we -- we made a very specific commitment that we would not proceed with phase 5 and that we would only proceed with phase 5 after having come back and made a proposal to -- to the Commission through a similar process.

And getting an independent assessment as was necessary, you know, so I -- I would say we have a due diligence to serve customers, and we will always consider options we need to in order to do that safe and reliably, but for now we're not proceeding with the project and would only come back, you know, we'd have to make a similar showing as we

are today as to -- as to the need for it -- for whatever would go forward.

MS. MALHOTRA: Okay. So the plan would be, if this gets approved, then the next step would be adding that additional pipeline from the L.N.G. facility to the higher pressure -- the higher distribution system to phase 4 in order to increase your distribution capacity, is that correct?

MR. DECICCO: No, no.

MR. METZDORFF: That's not correct.

MR. DECICCO: That's not correct. No, those are, again, totally different projects. And -- and for the reasons Pete described, no, completely unrelated in that sense, you know, we are pursuing these completely separately and again, we would only discuss M.R.I. again in a similar process, but -- but completely separately.

The only -- the only commonality is the fact that we've agreed to do this sort of independent assessment as part of -- in any future M.R.I. investments. But other than that, there's no, you know, operational connection to the 2 projects.

MS. MALHOTRA: Okay.

A.L.J. LEARY: So there's a few

questions and we don't have a lot of time left, but let me see if I can clarify. I'm -- I'm hearing that one is a high pressure system and that the other is a low pressure system and that the Greenpoint L.N.G. facility cannot inject gas into the -- what I'll call the -- the M.R.I., Metropolitan Reliability Project, because it's a high pressure system. Is that correct, Mr. Decicco and others?

MR. DECICCO: Yes. The -- the vaporizers were talking about do not inject into the high pressure system. Pete just -- it's always good to have our engineers answer that for the technical.

A.L.J. LEARY: Yeah. I think they'll stop you if you're wrong. Trust me.

MR. CONNOLLY: We -- we would -- we will. And -- and just, this is an important point, right? And -- and Pete, just help me make sure I get this right. Right. So we currently have at the Greenpoint L.N.G. Facility, 3 of our vaporizers, 3 of our existing vaporizers are able to provide gas into that high pressure distribution system; that doesn't change with this project.

We're still going to have 3 vaporizers that have that ability to reheat the gas, or I should

say reheat the liquid and send it out into that high pressure distribution system that is ultimately connected to phases 1 through 4 that was already constructed.

This project that we're talking about here today, vaporizer 13 and 14 do not have any connection to that high pressure distribution system. It feeds only into the low pressure distribution system.

A.L.J. LEARY: Okay. And -- and what about -- this may be a stupid question, but what about the other way. Can the M.R.I. system feed Greenpoint L.N.G. nat -- natural gas?

MR. METZDORFF: So the 350, the system that's there can only move natural gas. It cannot move L.N.G. in or out of the plant.

A.L.J. LEARY: Okay.

MR. METZDORFF: The 350 P.S.I. gas that comes in only goes to the existing infrastructure that's there. 13 and 14 cannot feed into or take gas from. And -- and as a matter of fact, the gas that goes in and out of the plant would not -- would not be part of that liquefaction, the whole process.

They would have to come in through the liquefier, go into the tank, and then, come back out through a vaporizer.

A.L.J. LEARY: Got it. I'm -- I'm asking something that's way 30,000 feet above where you are. But the point is, is that the existing state of affairs is that the M.R.I. project is connected to the Greenpoint L.N.G. facility period, right?

MR. METZDORFF: It's connected to the backbone line.

A.L.J. LEARY: Okay.

MR. METZDORFF: And the Greenpoint facility is connected to the backbone line.

A.L.J. LEARY: Got it.

MR. METZDORFF: The M.R.I. project does not directly connect to Greenpoint today. And the only way it could connect to Greenpoint as a physical property would be if phase 5 was built.

A.L.J. LEARY: Got it.

MR. METZDORFF: If phase 5 was built, it would not impact the ability of vaporizers 13 and 14 to take gas in or send gas out.

A.L.J. LEARY: Okay. I hope that

answers your question, Ms. Malhotra. I'm going to ask you to lower your hand and I'm going to go to miss -- back to Ms. Gronim. Ms. Gronim, I hope you have resolved the back feed problem. You're line -- you haven't. I'm not sure what to tell you, we're not going to be able to hear you so would you mute her again. Thank you.

Let's go to Ms. Fraczek. Thank you, Ms. Fraczek. Welcome, and your line is now unmuted. Would you please state your name and spell your last name for the court reporter?

MS. FRACZEK: Sure. My first name is Kim, K-I-M. And my last name is Fraczek, F like Frank, R-A-C like Charlie, -Z like zebra, -E-K. I have just a few questions. Chris, if you don't plan to truck L.N.G., why are you building a trucking facility at the -- at the Depot at 287 Maspeth Avenue?

MR. DECICCO: Yeah. Thank you for the question, Kim. So we are -- so the plant was constructed originally with an L.N.G. loading and unloading, you know, asset. That asset is out of service. And the reason why we are constructing a new L.N.G. unloading asset is because if we ever need

it in the event of an emergency where we have a -- an upstream pipeline condition.

Or we were unable to -- to make liquid, to fill our storage for -- to support winter operations, or if we had a significant weather event such as a significant polar vortex, where we drained down our supply during winter operations, and we were at risk of not having enough supply to get us through the winter to support our customers.

So the -- the asset that we are in the process of constructing is an asset that ensures resiliency and reliability --

MS. FRACZEK: So --

MR. DECICCO: -- at the plant.

MS. FRACZEK: -- so you do plan on using an L.N.G. trucking facility. I just wanted to clarify that for people that are on this call when you said you -- you don't have any plans for that, that -- that isn't in case the -- the truth.

MS. DECICCO: And Kim, I must make a -- I must make an additional statement to say that, you know, we are not allowed to truck L.N.G. So --

MS. FRACZEK: I know. I -- I --

MR. DECICCO: -- if were were --.

MS. FRACZEK: -- I know that you did apply for a variance to create a loop --.

A.L.J. LEARY: Let -- let me -- let me, hold on a second. I -- this is very, very important.

MS. FRACZEK: But they're spreading misinformation.

A.L.J. LEARY: Ms. -- Ms. Fraczek, you're going to be muted if you don't listen to me and speak -- if you speak over me, you're not going to speak. So I cannot have 2 people speaking at the same time because the court reporter will be unable to take down what you are saying. So please be respectful of each other and do not speak over each other.

Now, instead of making a public statement right now, do you have a question for the company?

MS. FRACZEK: Yes, I do. How long do you plan on using these 2 new L.N.G. vaporizers?

MR. DECICCO: Yeah. So -- so that -- that's a good question. You know, these vaporizers are an important asset, you know, in terms of the fact that they provide reliability and they're an

insurance policy, right? So as described, even if we were to have upstream capacity issues, other issues on our system that prevented us from -- from serving customers.

We would want them there because they provide that -- that -- that reliability, that redundancy, that -- that gives us comfort, that we'll be able to serve customers on the coldest days of the year. So we would plan, you know, new assets like this, I think, fair to say we would plan to keep on our system as long as we had customers that we were serving with gas.

It's that important that we have that ability. Chris or Pete, I don't know if you have anything to add to that, but -- but certainly, you know, we would intend to use these as long as we had customers that -- that relied on us to keep their house -- their house warm.

MR. METZDORFF: So I think it's important to note that, that these being the newest assets on the plant, they would be the ones that would stay in service for the longest point going forward.

We have existing vaporizers on site

that are older and that as -- even as we move forward, if the need for L.N.G. decreases, it would be the older vaporizers that would be retired and we would retain the new vaporizers. So that this way we retain the ability to operate the plant.

The oldest units that are there were built in the early 1980s. So we would have a need for these assets going forward and they will not be retired as long as we have a need for gas on the system.

A.L.J. LEARY: Thank you. Ms. Malhotra, would you lower your hand and Ms. Fraczek, I'm hoping that answers your question.

MS. FRACZEK: It doesn't really because they didn't give us a -- a projection of how long they're planning to use these 2 new L.N.G. vaporizers, given that we have a climate law that requires us to retire, you know, emissions-causing infrastructure, but did you guys do a cumulative greenhouse gas emissions study on this, including the flaring and things like that, that happened at the facility that I can see from my roof?

MR. DECICCO: Yeah. So I think, you know, this project in particular has been the subject

of a lot of public attention because we have a D.E.C. permit pending. We've done a lot of analysis, including a C.L.C.P.A. analysis as part of that process. All of that information, as I said, is available on our website. We couldn't possibly describe it all.

But again, the benefits of this project in particular are that they will be used in -- in lieu of older assets of the -- as we described, you know, so much are built in the 80s. So therefore they consume less gas. And that in turn means that they will involve less direct emissions at the facility.

So you know, moving forward, this project actually lowers emissions from -- from the facility. And as we've described, you know, we're -- we're applying to downgrade our permit, not upgrade it. And you know, for those reasons we think this is entirely consistent with the C.L.C. -- C.L.C.P.A., excuse me.

A.L.J. LEARY: And you're -- you're speaking about the D.E.C. air emissions permit that, I believe, if I -- I'm hearing you right, will have emission limits that may be lower than the current

permit?

MR. DECICCO: So that -- that's correct. And -- and again, I -- I certainly direct anyone that really wants to get into these issues to -- to the information we include in our report and the links we include in the D.E.C. proceeding.

But yes, the new permit would have roughly half of the limits cap that the current permit has.

A.L.J. LEARY: Thank you. Okay. I'm going to call Anna Reyes. Ms. Reyes, and your line will be unmuted momentarily. Go ahead. Would you please state and spell your last name for the court reporter?

MS. REYES: Hi, my name is Anna Reyes, spelled R-E-Y-E-S. I have 2 questions. I'm curious, based on the studies that have been done, assuming they have been, what are the environmental impacts of not just the vaporizers when they're running, but also the impacts of the construction of the vaporizers? And I am more focusing on the direct environmental impacts to our community.

MR. DECICCO: So you know, first of all, thank you for the question. I think, as we said

at the beginning, you know, we -- we assessed a whole, you know, a whole slew of factors in -- in considering what projects we wanted to move forward with, including community impacts.

One of the advantages of this project relative to other options is that the projects are being done within the footprint of the existing L.N.G. facility. So as opposed to other projects, you know, that we considered, that were discussed, and -- and -- and weighed where they'd either be out in the community, for exam -- example, the pipeline, clearly heard feedback that was not of interest, L.N.G. barging, you know, almost any other project has to be done outside of our footprint.

One of the -- one of the best elements of this project is it's -- it's done within an existing footprint in an area where we already have assets. And again, we're installing more efficient, lower emitting assets in that place. So from -- from that perspective, we think that this project actually stacks up very well in terms of relative community impacts.

MS. REYES: I didn't hear you state any specific environmental impacts.

MR. DECICCO: Yeah. I mean, it's a construction project. So within the confines of -- of our fence. So I -- I think, and I don't know if Chris, if you want or Pete have specific impacts, but I think the actual construction impacts are, we would characterize as nil.

MS. REYES: But what are they?

MR. DECICCO: I -- I don't know that there is anything. I mean, Chris, or --.

MR. CONNOLLY: I'll take.

MR. DECICCO: Yeah. Go ahead.

MR. CONNOLLY: Phil, thank you. Yeah. Good question and thank you for that. But in the process of seeking permitting for these types of projects, we're not required to do that type of analysis for the construction of -- of this -- these new assets to place them in service.

So we do have all of our permitting in place with the exception of the D.E.C. permit and -- and -- and those permits do not require us to do that detail analysis on the -- for the construction of -- of these vaporizers.

MS. REYES: Okay. Then I would love to state for the court reporter that that's something

I would be incredibly interested in the, you know, private consultant or whatever consultant is doing further analysis. I think that would be in the community's interest. Understanding what those are, especially as you say, you're not required to figure out what they are.

A.L.J. LEARY: Ms. Reyes -- Ms. Reyes?

MS. REYES: Yes.

A.L.J. LEARY: It is not now time for the public comment. And that is a very legitimate public comment, but would you hold that? I need to reach other folks that are still pending with questions.

I'm going to call Rami Binnawi El Puente. Mr. El Puente, your line is going to be unmuted and it's unmuted right now. Go ahead.

MR. EL PUENTE: Yes. My name is Rami Binnawi. My last name is spelled B-I-N-N-A-W-I. And I had a couple of questions for National Grid. One is throughout the 365 calendar days, how many days do they intend to use these vaporizers?

And the second question is, I know you had mentioned this in your presentation, but under what conditions have you set forth that you are not

going to seek recovery costs for the investment that you are putting within these vaporizers?

MR. DECICCO: Yeah. So -- so I'll just take those in -- in, well, in reverse order. So with respect to the cost recovery, again, because we think this project is necessary, because we think it's important. We've agreed to subject our -- our project to this process in an independent assessment. And that will determine whether or not we're able to recover the cost or determine our rate plan.

We've also conditioned recovery on our ability to meet certain targets with respect to non-infrastructure programs. Again, because we heard that that's what our customers want to see us deliver. So our ability to recover the costs will be subject to meeting energy efficiency targets, demand response targets, referring customers to electrification options, pursuing non-pipes alternatives.

Again, the kinds of programs we heard very clearly that, that our priority for our customers. So we thought it was important that we stood behind that and -- and -- and demonstrated our commitment to delivering those, that we're not just

trying to solve every problem with a pipeline. And we are sincerely looking to deliver non-pipes alternatives and -- and -- and -- and deliver non-infrastructure solutions.

And so we've conditioned recovery on meeting those targets, and we discussed that in the report. I'll say those targets are challenging and there's a very good chance that we don't meet them in the future which would, in fact, limit our -- our ability to recover these. But we think it's important that we show that commitment and that's why we agreed to it.

With respect to how many days we would expect these units to operate, that is entirely dependent on factors like the weather, you know, they can only operate so long because the tank only has so much gas in it, but -- but historically, they've operated as we've described in the presentation between 2 and 14 days a year.

And that's not, you know, running 24/7, that's pieces of -- of -- of those days. But -- but I think one of the more attractive elements of this project is if we don't need it, it doesn't run. Compared to other solutions like pipes that are

operating 24-hours a day, 365 days a year, these assets only operate when they're critically needed to meet our customer's energy needs, again, among the factors that we think weight in favor of -- of moving forward with them.

A.L.J. LEARY: Thank you. So I'm next going to call Eric Wood. Mr. Wood, your line will be unmuted momentarily. Oh, he just jumped off. Oh, you're back. Okay. Mr. Wood, state your name for the court reporter and spell your last name?

MR. WOOD: Eric Wood, W-O-O-D. So just a point of clarification. I had trouble accessing WebEx, and maybe you went over this, but I heard one of you say that when demand is reduced in the future, the vaporizers built in the 80s will be the first ones to go.

So to me that implies that those will still be being used and the new ones will be being used. So wouldn't that increase the overall emissions for the facility, if we're using the old ones and the new ones? And why would, to follow that up, rates increase for energy we don't know, that we might not need, it's just a backup?

MR. DECICCO: Yeah. So Chris, would -

- why don't you answer the -- the first question, just about, you know, when we'd expect these vaporizers to operate relative to the -- to the older ones?

MR. CONNOLLY: Yeah. An important point to highlight here is that when we do need to operate the L.N.G. facility, not all the vaporizers operate. So while we have 6 in service today, we don't operate all 6. And that's only during the most extreme conditions.

And in fact, today, in our current state, you know, 5 of the 6 would be operated and 1 is redundant on that high pressure system that we mentioned earlier. So you know, looking forward, you know, we expect to operate the vaporizers, you know, as we stated, only on an as-needed basis, depending on the weather, and depending on system demands, and conditions that we have out in our network.

And that's, that's usually important that we're able to throttle and -- and utilize the vaporizers as needed.

A.L.J. LEARY: Thank you. Willis Elkins is our next speaker.

MR. WOOD: There's a follow up to that

about why -- why would we increase our rates when we don't know if we'll need the -- the energy, if it's just for backup?

MR. DECICCO: Yeah. So I think to that question, you know, in the first place, we will certainly use, you know, were this project go forward, were we to make -- construct these units, we will certainly use them. As described, you know, they would -- they would be used in lieu of older equipment that's -- that's less efficient and -- and -- and higher emitting.

But I think the important answer to why we need these for the reasons we described is really around safety and reliability and -- and the consequences of -- of losing pressure in the gas system on the coldest days of the year, when it's, you know, the most, you know, that's something that we really have to plan for.

We've seen with some really horrible consequence what happens when -- when customers lose access to -- to power gas in -- in the coldest parts of the winter, that's not something we can allow to happen. And so that's why we need to make these kinds of investments to make sure that we are meeting

that forecast, you know, should it happen. And it it's -- it's our responsibility. It's our core mission.

MR. WOOD: So -- so why not replace the old ones instead of adding?

MR. DECICCO: Yeah. So the challenge is -- is that what would not give us that sort of incremental ability to extract more gas from -- from the tanks at -- at the -- at the highest, excuse me, at -- for the peak periods as we see that -- that demand curve increase in the near term. So this is providing us, you know, incremental ability to extract gas at peak with the extra vaporizer.

MR. WOOD: Thank you.

A.L.J. LEARY: Okay. Our last questioner is Willis Elkins. Mr. Elkins, your line will -- is now unmuted. Would you state your full name and spell your last name for the court reporter?

MR. ELKINS: Hi, my name is Willis Elkins. Last name is E-L-K-I-N-S. Just had a couple quick questions. One was about, there's been a lot of reference to the D.E.C. permit about emissions from the plant and what that threshold is. But I don't believe that we have been presented with

information and I'm wondering if -- if National Grid can provide that from previous years?

MR. DECICCO: So and I have should said this upfront. Any question that we can't answer sort of in real-time here, we can certainly take back and we can post a response to. As our report describes our estimate is that the new vaporizers will actually reduce total emission by about 99 metric tons of CO_2 a year because of they're operating more efficiently and therefore using less energy.

I do not have the total numbers but that should give you some indication while we, you know, estimate it as -- as the benefits from the -- from the more efficient units, but we certainly can answer that question, you know, and post the response in the document.

MR. ELKINS: Okay. We -- just for the -- for the court record, the community had asked the same question many, many times so it would be helpful in future meetings if you have this information accessible.

The other question was about the number of days it's in operation. Can you provide

more information beyond just the last five years, that seems like a very small data set to use?

MR. DECICCO: So again, we'll, so I'll say that in order to look forward, you know, this, we -- we look at our forecast, our annual winter forecast and we plan for those worst-case conditions, and we would only use this vaporizes when we have those coldest temperatures. So we have some type of pipeline interruption where we need to send gas out of the plant faster in order to meet our customer needs.

You know, but it -- it's, again, when we look at that forecast that we develop and we look at the demand on the system, this was the best option for us to meet those customer demands, by installing two additional vaporizers, one of which would be redundant to support system resiliency, reliability of the system going forward.

And so you know, we always look back to help us to look forward, so that's why we've used the number of anywhere from two to 14 days, but it's all driven on weather and it's all driven on pipeline supply coming into the region.

MR. ELKINS: Sure.

MR. DECICCO: I mean, often we would use these vaporizers and we would love to cycle these vaporizers, as Phil says. Because they are more efficient vaporizers and we could run them more -- more frequently than we would run some of the older vaporizers, right, that have slightly higher emissions.

MR. ELKINS: Sure. But just to clarify, when you say you're looking back, you're only looking back five years, is that as far ahead as you're looking five years as well?

MR. DECICCO: No, our -- our forecast objection takes us out, you know, beyond that. But you know, the five years, the last five years is really the most relevant that we look at in terms of history.

MR. ELKINS: Okay. So can you share information beyond the past five years of how many days it's been in operation?

MR. DECICCO: I think we could respond to that, yes. We would have that information.

MR. ELKINS: But not accessible right now?

MR. DECICCO: Not accessible right now

at this time.

MR. ELKINS: Okay. Last question, in the presentation it said that the National Grid's Greenpoint Energy site is 50 acres. Can you confirm that's correct because I believe that's about half the size of the entire National Grid site?

MR. DECICCO: So the 50 acres refers to the L.N.G. facility itself. The total site, I don't know maybe some of my teammates can help me out here, is -- is much larger acreage in that neighborhood.

MR. ELKINS: Okay. Thank you.

MR. DECICCO: It's -- yeah. So the total site is approximately 120 acres, so you -- you were right, that the L.N.G. plant consumes you know, roughly half, less than half of the total acreage of property that we have there.

MR. ELKINS: All right. Thank you.

A.L.J. LEARY: Thank you. We're running a little bit late. I think I've addressed everyone's questions. I do want to take a very brief break. Probably just under five minutes. I hate to do this, but I think folks do need it.

And I -- at the risk of complicating

matters, Mr. Decicco. I'm wondering if you could provide the permit number the -- that folks can go on the D.E.C. website and get additional information on that side?

MR. DECICCO: Yeah.

A.L.J. LEARY: Is there something that you can give the -- the --

MR. DECICCO: Yeah.

A.L.J. LEARY: -- the group now that would enable them to go on D.E.C.'s websites and get additional information on the emissions and so forth?

MR. DECICCO: Even better, Judge, we have a dedicated website for the project. It's greenpointenergycenter.com, where we have all of the information relative to the D.E.C. proceeding including our C.L.C.P.A. assessment, that includes all of the requested information on emissions that -- that came out of that last set of questions.

So again it's greenpointenergycenter.com, has all of the information relevant to the D.E.C. proceeding in one place. There is a document library there that -- that anyone interested can look at.

A.L.J. LEARY: Okay. Terrific. I

think that's very helpful given the questions that we've had. Let's take a five-minute break. It is now two eleven. I'm going to make a four-minute break, or now, looks like a three minute break and let's come back at two fifteen. Thanks, everyone.

THE REPORTER: We are off the record.

(Off the record; 02:13 p.m. to 02:17 p.m.)

THE REPORTER: We are back on the record.

A.L.J. LEARY: Thank you, Mr. McClain. I'm now going to turn to the public statement hearing portion of the proceeding. And again, I just want to explain that this is your opportunity to be heard. It's not a question and answer session anymore. There will be no witnesses et cetera.

And there are other ways to comment, which we will put up for you in a -- in a slide. Let me just quickly review the logistics and guidance for speakers. For those who registered to speak verse -- via the Webex platform, when I call your name, we'll let you know as you've seen that your line has been unmuted, don't forget to unmute your own line, computer speaker in case you have also muted it.

Again, please state your first and last name, spell your last name for the court reporter, speak slowly and clearly, and please modulate your voice. I've heard everyone really wonderfully modulating so thank you for that. For those who are registered by -- to speak by telephone and we still have a couple of them, when I call your name, I'm going to ask you to press star three on your phone so that we can recognize your line and then unmute it. Of course, then, we'll notify you and that your line is unmuted, and please state your name et cetera.

Any registered speaker should identify the organization on whose behalf you may be attending. Please identify that -- the name of that organization clearly. And if we cannot hear you, we will -- once we unmute you, we will have to move on to the next speaker, but I will circle back and make sure that I re-call your name in order to attempt to capture your comments.

Our objective today is to give everyone an opportunity who is registered to speak, the ability to present a statement. Unfortunately, we have many registered speakers, and I'm therefore

asking everyone to limit your comments to approximately three minutes as a courtesy to other people who want to provide comments. If you go much longer than that I'm going to ask you to wrap up so that we can move on to the next speaker, I want to reach everyone.

Your presentation also -- a lengthy presentation can be summarized and submitted in writing to the Secretary. And if we don't reach everyone, we will make other accommodations to assure that your comments are included in the record as the Secretary's notice of this public statement hearing indicates. This means that you still have the ability to comment by telephone, by mail, or by email.

I want to make something very clear. And on your screen right now, are the other ways to comment here by email to the Secretary, by mail to the Secretary, you can also call on the phone and speak what you'd like to say. And of course, you can present your comments to the Commission at their website.

Again, click on the search function at the top of the website page, enter the case number,

and click on the post comments box. Make sure you have the case number on your comments. Some of you are signed up for both the afternoon and evening sessions today. Because of the number of commenters, we will only be able to accept comments from you at one of the hearings. There is no need to make the same comments twice.

If you registered for both the afternoon and the evening sessions today and you've provided comments at this afternoon session, we will not be calling you this evening. Your position is already included in the transcribed record and we want to give every one participating the ability to present a public comment.

Again, I remind everyone choose your electronic device and make sure that we do not experience feedback problems. If you're having any technical problems the number to call is 1-800-342-3330, 1-800-342-3330. We will attempt to resolve this problem with you.

I'm now going to proceed to take public statements. Again, as a reminder, after I call your name, state your name, and spell your last name for the court reporter. Our first speaker is

Jeanne Bergman. Jeanne Bergman, do you have -- can you hear me?

MS. BERGMAN: Yes.

A.L.J. LEARY: We do hear you. Thank you.

MS. BERGMAN: Hi, I actually thought I was speaking at a different time, but I will be -- I'll speak now and be brief. I am completely opposed to the expansion and the extension of the life of this dangerous and unnecessary system as new technologies that do not destroy the climate and our health come on board, we will reduce the demand for gas rapidly, both through efficiency and through renewable power, especially, distributed resources.

But I also want to point out that one of the reasons that this location can have a L.N.G. site is that it has been grandfathered. You couldn't build a similar facility elsewhere. And the reason you can't is that, you know, no neighborhood would want this in their area.

The grandfathered area is -- the grandfathered facilities are all in environmental justice locations. So the very structure and history of environmental injustice in the system is

replicated by the placements and extension of the life of the system.

And one interesting note, the reason we use the term grandfathered is because when Black Americans first got the right to vote, one of the ways that voting was restricted to whites was to say that you had to be able to show that your grandfather had voted in the past. And of course, if you were enslaved, you couldn't.

So this L.N.G. plant for all of its very specific problems is also a monument to racism and environmental injustice, it's an atrocity, and it should be shut down. Thank you.

A.L.J. LEARY: Thank you. Our next speaker is Frederica Ulster Pugh. I'm not seeing --.

MS. KAILAS: Frederica, if you have called in please press star 3 on your phone so I can locate you.

A.L.J. LEARY: Okay. Let's move on to the next speaker, we'll circle back, Janet Apuzzo, Janet Apuzzo. Okay. Next --.

MS. KAILAS: Janet if you --

A.L.J. LEARY: Is she -- is she on?

MS. KAILAS: Janet, if you have called

into the public statement hearing, please press star 3 on your phone.

A.L.J. LEARY: Okay.

MS. KAILAS: There's no raised hand.

A.L.J. LEARY: Do we have Ms. Apuzzo?

MS. JUKES: No raised hand, Your Honor.

A.L.J. LEARY: Okay. Thank you. Maggie Lee. Ms. Lee? Okay. Next speaker, Judith Karnepa, Judith Karnepa. I don't see her signed on, if you're call in user, please press star 3. Jacob Shipley, Jacob Shipley I see. We're going to unmute your line, Mr. Shipley. Okay. You're line has been unmuted.

MR. SHIPLEY: Can you hear me now?

A.L.J. LEARY: Yes, we can.

MR. SHIPLEY: Fantastic. Okay. My name is Jacob Shipley. I am a resident of Greenpoint. I actually live just south of the National Grid site on Driggs Avenue. And as a resident of the community nearest to the L.N.G. site, I want you to deny National Grid rate hike for two new fracked gas vaporizers.

I lived about a ten to fifteen minute

walk away from the site and I often pass by on my way to work. They are the -- the current vaporizers are already a blight on our community. They are a reminder of the polluting of Newtown created by groups like National Grid and as Jeanne recently said, a constant threat of danger to anyone aware of the volatility of L.N.G..

I am actually afraid to be living this close to this site because I know that -- that it is not legal anymore to build these things because they are so dangerous because they are such a high risk of explosion. And National Grid is talking about building more vaporizers to deal with extreme weather events that might be causing a lack of gas being brought to customers, but those extreme weather events one, were brought on by National Grid purporting climate change and two, are more likely to cause these vaporizers to be more dangerous to our community and to be more and more volatile.

Not to mention that National Grid is claiming they need the vaporizers to meet demand that may or may not happen and actually the current vaporizers are more than producing enough to satisfy demand, demand that because of New York State's

climates laws we expect to go down.

So they don't really have any current plans to use them as they've said so why should we have to pay for it? The community has made it clear time and time again that we do not want this project and we are making it clear once more. Deny National Grid's rate hike for these 2 new fracked gas vaporizers. Thank you very much.

A.L.J. LEARY: Thank you. Our next speaker is Catherine Thomson, Catherine Thomson. I see Ms. Thomson. Your line is unmuted, Ms. Thomson. Ms. Thomson, are you there? Okay. We're going to move -- move on to the next speaker, Conner Allen, Conner Allen. I don't see Mr. Allen. Let's move on.

Sandy Wrens, Sandy Wrens. I think she's a call-in speaker. So please press star 3 on your phone. I have an email about or a message about Ms. Wrens, but I'm going to have to move on. Anshul Gupta, Anshul Gupta. Okay. I don't see Mr. Gupta or Ms. Gupta.

Anna Laidecker, Anna Laidecker. Okay. I don't see her. Sarah Gronim. Ms. Gronim, we were trying to get you on the line, but you have a lot of feedback, has that been resolved. So we're going to

unmute you again. Actually, I don't see you on the phone, so let me move on.

Claire Hill, Claire Hill. Ms. Hill, no? Okay. Sebastian Baez, Sebastian Baez, B-A-E-Z. Yes, I see you your line will be mute -- unmuted momentarily, bear with us. You are unmuted, please state, and spell your last name for the court reporter.

MR. BAEZ: Hi, can you hear me?

A.L.J. LEARY: Yes.

MR. BAEZ: All right. Last name Baez, B-A-E-Z.

A.L.J. LEARY: Go ahead.

MR. BAEZ: All right. Hi, my name is Sebastian Baez. I'm a lifelong resident of New York City and I'm testifying in opposition to these fracked gas vaporizers. New York State passed a nation leading climate law in 2019, the Climate Leadership and Community Protection Act, which specifically aims to, in letter and in theory, move New York State off fossil fuels in all aspects of energy generation, production, and distribution. This fracked gas vaporizers are a clear example of a project in its firm opposition to the letter and

spirit of this law.

Not only are these vaporizers part of a larger already completed project permitted by not only other State agencies but also the federal government. But this specific project is a last step in a longer project that will lock in New York City's and New York State's dependency on fossil fuels contradicting the very letter of the law that New York -- New Yorkers, the State legislature and the Governor's office passed in 2019.

Now, rate hikes are considered one of the actions that the Public Service Commission is required to conduct an analysis of a C.L.C.P.A. on. It is unacceptable that the P.S.C. does -- does not conduct a climate analysis of this project either individually or as part of a larger project of National Grid fracked gas pipeline.

Additionally, under the newly passed Cumulative Impacts Law, the Public Service Commission should also be required to prepare an impact statement for the concentration of industrial pollutants that the neighborhood of Greenpoint already faces. They're already home to the -- to the nation's largest oil spill in history and is home to

many oil and gas storage tanks and projects.

Therefore, there has been no analysis of whether this project would increase those burdens to an already overburdened environmental justice community. So once again, I am calling upon the Public Service Commission to deny these vaporizers. Please step up. Thank you.

A.L.J. LEARY: Thank you. Lisa Harrison, Lisa Harrison, I see you. Your line will be unmuted momentarily.

MS. HARRISON: Thank you.

A.L.J. LEARY: Go ahead, Ms. Harrison.

MS. HARRISON: Okay. Thanks. My name is Lisa Harrison, H-A-R-R-I-S-O-N, and I oppose raising already high rates to build new vaporizers next to an environmental justice community. I live in Manhattan, so I'm not a National Grid customer. But like National Grid, my energy company, ConEd is an investor-owned, for-profit, corporate monopoly.

In 2020, my building transit -- transitioned from oil fuel steam heat to air source heat pumps which run on electricity. That same year, the Public Service Commission approved a rate increase for ConEd largely to build enhance -- to

build and enhance fossil fuel infrastructure. Our electric bills shot up.

So although the switch to heat pumps saved a lot of energy, it did not save a lot of money due to high electric bills. Now, ConEd wants another increase which will make heating season very difficult. Electrifying buildings is an important part of transition to renewable energy and electrification will be severely undermined by constantly escalating energy bills. I strongly emphasize and support National Grid customers who are fighting pollution and price gouging.

The Greenpoint facility has two storage tanks where they keep highly flammable, toxic liquified gas and six vaporizers to vaporize it back to its gaseous state. National Grid now wants two more vaporizers for which they intend to charge their customers $65 million dollars. Locking us into decades more of fossil fuel usage violates the mandate of the C.L.C.P.A. to reduce, not increase greenhouse gases.

Extensively, public utility National Grid should implement energy efficiency programs and transition from gas to wind and solar power. Instead

of the current plan they should be -- should be proposing a no- gas option. Since we spend decades increasing greenhouse gases, we are now on the precipice of destruction. So we need to faze out fossil fuel and move to renewable now.

It will not be comfortable, and it will not be easy, but it is necessary. So projecting demand should include the effective efficiency, weather stripping, insulation, and other ways to conserve energy as well as renewable -- renewable power.

As a public service -- as a public utility regulator, we count on the P.S.C. to enforce New York State Law. I urge you to deny all rate increases for fossil fuel expansion and to require a no-gas option and a plan for retiring the Greenpoint facility and transitioning to wind and solar power. Thank you.

A.L.J. LEARY: Thank you. Next speaker is Thomas Wiggen, Mr. Wiggen, if you're a call-in user would you please press star 3, I don't see you otherwise electronically. Okay. Next speaker, Matilda Dyer, D-Y-E-R. Matilda, I see you, we're going to unmute your line momentarily. Bear

with us.

MR. DYER: Ma'am.

A.L.J. LEARY: Yes, we can hear you now.

MR. DYER: Okay. Good afternoon. My name is Matilda Dyer. I'm a resident and a homeowner, and a member of the Brownsville Nehemiah Homeowners Association. What you would consider phase 1, that's phase 1 of the pipeline. I am here today to ask why our environmental impact review of phase 5 is being discussed when no environmental impact review was done in phases 1 to 4.

Brownsville, Ocean Hill, Nehemiah, Williamsville, do not matter. Brownsville is an environmental justice community and is required by law to be protected by D.P.S. and you have failed to do that. We should not be discussing the review of phase 5 without including all the impacted communities.

I am calling on D.P.S. to immediately expand the analysis and include all communities. The rate hike decision was wrong, why are we being forced to pay for pollution project. D.P.S. should not have a -- approve the rate hike because it failed to apply

the C.L. -- the C.L.C.P.A. to the black and brown communities.

National Grid wants you to believe that the pipeline that is a separate project from the expansion of the facility feeds, that is a lie. National Grid said the only purpose for the facility expansion was to be able to handle additional gas that was flowing to the pipeline. The very same pipeline that was built to poison our communities.

The entire project must be stopped, and the gas must be turned off in phases 1 to 4. All communities deserve clean air and justice. D.P.S. you have a legal obligation to protect my community. I am calling on you to do your job. Thank you.

A.L.J. LEARY: Thank you. Our next speaker is Guy Jacob. Guy Jacob, I see you. We're going to unmute your line momentarily. Bear with us. Okay. You are unmuted, Mr. Jacob.

MR. JACOB: Hello.

A.L.J. LEARY: Hello.

MR. JACOB: Okay. You can hear me. Last name is spelled --

A.L.J. LEARY: Yeah.

MR. JACOB: -- last name is spelled J-

A-C-O-B. I serve as Conservation Chair of South Shore Audubon Society in Nassau County. And on behalf of our Board of Directors, I am here to state that we oppose expansion of this facility and any associated rate hike requests because we stand with the communities living around National Grid's Greenpoint facility as they rally against decades of environmental racism.

And now, to add insult to injury could be coerced to pay for more fracked gas infrastructure. The C.L.C.P.A. demands that New York State must plan to decommission this polluting facility, not expand it. Permitting the build out of fracked gas infrastructure while we construct ultra wind pumps is like eating raw spinach with one hand while eating deep fried pork fat with the other.

Requiring ratepayers to pay for this junk food would be akin to the government purposely and maliciously impairing the health of its citizens. Now, while it is true that the C.L.C.P.A. engendered dissonance between itself and the prior statute that it does not specifically address. The spirit and the mandates of the -- of this law unequivocally require our moving off gas.

Centering on steadfast gas service and hiding behind what the C.L.C.P.A. does not specify is a recipe for maintaining the status quo and all its environmental consequences. We're at a crossroads. And decisions made today will impact us for decades to come.

Moreover, if the P.S.C.'s perceived primary role continues protecting the corporations that deliver this methane gas, the status quo will remain etched in our infrastructure even as the C.L.C.P.A. flounders into oblivion. Thank you for your consideration.

A.L.J. LEARY: Thank you. Our next speaker is Rammy Dinnawi. Mr. Dinnawi, I see you. And your line will be unmuted, it is unmuted. Go ahead.

MR. DINNAWI: Hi! There. My name is Rammy Dinnawi. Last name is about D-I-N-N-A-W-I. I am the Environmental Justice Coordinator at El Punte, a community based organization that is based in the South Williamsburg Bushwick area.

Our community over the past few years has voiced its concern regarding National Grid's infrastructure projects, primarily the Metropolitan

Reliability Infrastructure project, and now, the new proposed vaporizers that are in question in this public hearing today.

We want to strongly voice that we do not appreciate being labeled as an environmental justice community and a disadvantaged community solely for the purpose of records. One way that the State and the City needs to address the wrongs that have been historical towards our community is to prevent the construction of these vaporizers.

We sat here today and listened to National Grid, their presentation, them answering questions, and at no point did we see any justification for the construction and installation of these new vaporizers.

According to National Grid themselves, these vaporizers will only be functional upon a need basis, and at maximum 2 to 14 days. We do not see any justification why 2 to 14 days of service require us, and the state to pay $65 million in fossil fuel infrastructure, when at the same pace we are moving towards a renewable and non-fossil fuel energy infrastructure.

We need to also mention that these

forecasts for gas demands are projected by National Grid themselves. So we ask the question, how is it possible, and how is it feasible, and reasonable that the people that are servicing and making profit off of the delivery of gas set the projection themselves to meet the targets that they put hence forth.

And so we call on the Public Service Commission to deny these vaporizers as well as on government -- on Governor Hochul to hear the cries, and the pleas, and the calls of the communities that are impacted by this -- by these new vaporizers that are being in question here.

And just as a final point, National Grid keeps saying that they're doing these vaporizers, they're constructing them within their domain. I put forth the question. Do the environmental impacts stay within the parcel that National Grid owns or are they global, and are they -- are the effects seen on our community as well? Thank you.

A.L.J. LEARY: Mr. Dinnawi, would you kindly again state the organization that you indicated you were the Environmental Justice Coordinator for?

MR. DINNAWI: The organization is called El Puente, E-L, space, P-U-E-N-T-E. We are based in South Williamsburg and Bushwick.

A.L.J. LEARY: Thank you. Our next speaker is Michael Davis. Michael Davis, I don't see you. So I'm going to go to the next speaker which is Eric Wood. Mr. Wood, you are on, and we are going to unmute your line momentarily. You're unmuted. Go ahead.

MR. WOOD: Great. Thank you. My name is Eric Wood, W-O-O-D speaking on behalf of NYPIRG, the New York Public Interest Research Group here to state opposition to National Grid's proposal. If New York expands fossil fuel infrastructure like the proposed expansion of the Greenpoint Energy Center, it's going to lock New York into decades more polluting greenhouse gas pollution.

Reliance on fossil fuels will further ignite the climate crisis, devastate public health and L.N.G. specifically will jeopardize the safety of local residents. It is a necessity that we transition away from greenhouse gas emitting facilities. National Grid's proposals to expand fossil fuel infrastructure and increase rates need to

be rejected and in direct opposition to the C.L.C.P.A. and the United State's I.P.C.C. recommendations.

People are struggling more than ever to make ends meet due to the public health crisis we are facing, and the economic impacts brought on by it. Further investment into fossil fuel infrastructure is a waste of money resulting in more pollution nor does it help us reach our climate goals.

On top of a global pandemic, we are in a climate crisis. Any future money invested into our energy system needs to be invested in renewable heat, wind, and solar, and battery storage, and energy efficiency measures. Rather than aiding the fossil fuel industry and their plan to distribute as much fuel as quickly as possible, NYPIRG urges the denial of this plan instead prioritizes ways that help us achieve the climate goals we have set out for ourselves.

Utility companies and the fossil fuel industry argue that continuing use of fossil fuels is more reliable and predictable to the pocketbooks, but they have been proven wrong and shown how vulnerable

the fossil fuel market is when it comes to dependability and volatility.

Oil and gas prices have skyrocketed leaving several New Yorkers unable to pay their bills to heat their homes already. So expanding, you know, rate -- rates -- increasing rates is just adding to it. Climate change is the biggest threat to humanity and expanding fossil fuel infrastructure only contributes to that threat.

New York must move off fossil fuels to a hundred percent clean, renewable energy future. NYPIRG urges the denial of the proposed rate increase. National Grid need to meet the asserted energy needs of all New Yorkers through efficiency measures, demand management, electrification, and renewable energy production. Thank you for the opportunity to speak today.

A.L.J. LEARY: Thank you. Our next speaker is Joanne Sexton, S-E-X-T-O-N. Ms. Sexton, I did see you. We'll have your line unmuted momentarily. You're unmuted. Go ahead.

MR. SEXTON: Hi. Thank you. Thank you for the opportunity, Your Honor. I'm Joanne Sexton, spelled S as in Sam, E-X-T-O-N. I'm an

Executive Board member for Community Board 16 in Brooklyn which covers Brownsville and Ocean Hill Brownsville.

I find it disconcerting as to how during your presentation by Mr. Connolly and Mr. Decicco from National Grid that they spoke about the safety, simplicity, and reliability of the pipeline, and then -- and the proposed vaporizer system. They spoke about National Grid's transparency. Where was National Grid's transparency when they deceptively began this project in phases 1 through 4 of the pipelines.

They advised us in Brownsville that they were just improving the existing pipelines. And instead they were actually building pipeline -- a pipeline under our existing pipeline. If this project is so safe and reliable, then, why did National Grid lie to the Brownsville community about the reason for the pipeline's construction?

Why was the community not given any prior notice about this project? They tried to sneak it in. Why is this project being facilitated without a full environmental and independent review of the environmental impact on all of our communities'

phases 1 through 5 against several New York State laws that specifically protect black and brown communities against environmental injustices, National Grid has violated our civil rights.

National Grid threatens our community's ability to live in healthy and safe environments. Then, they charge us with rate hikes to finance the same project. So we call on an end to this project, we say no to the approval of their permits and there must be a required, full, independent, environmental analysis of the existing phase pipeline and any future expansion.

There must be a review of the pipeline and the L.N.G. facility as one whole action, it is not separate. In the interim, turn off the highly toxic gas that's running through phases 1 through 4. Thank you.

A.L.J. LEARY: Thank you. Our next speaker is Phil Opsasnick. Mr. Opsasnick, I see you. Your line will be unmuted momentarily. Phillip Opsasnick, there you go -- no. Now, your line is unmuted. You can go ahead.

MR. OPSASNICK: Thank you. Good afternoon. And thank you for your time, and

generosity, and listening. My name is Philip Opsasnick. I live in occupied Canarsie, Munsee, Lenape territory, colonially known as Bushwick, Brooklyn. I'm a professor of philosophy and ethics at Fordham University and a member of Sane Energy Project.

I'm also a proud member of the No North Brooklyn Pipeline Coalition and stand in vehement opposition to the potential expansion of the L.N.G. facility in Greenpoint. Over the past two years, I've spent a great deal of my free time engaging with communities along the pipeline route across Brownsville, Bed Stuy, Bushwick, Williamsburg, and Greenpoint.

These are communities who have endured decades of trans-generational harm from dangerous infrastructure, infrastructure just like the No North Brooklyn pipeline or the Metropolitan Reliability Infrastructure which would undoubtedly worsen with the addition of these two new L.N.G. vaporizers.

These are communities who are actively suffering from impacts of harmful infrastructure. Families who have been opposed to this exact type of unnecessary and injurious violence for decades.

These are communities who are in defined opposition to the addition of two more L.N.G. vaporizers and who have grown distrustful of National Grid. And yet, still remain hopeful that these hearings will ultimately lead to the full rejection of the L.N.G. vaporizers once and for all.

One cause of hope is the verified information and knowledge available concerning this infrastructure and its deleterious effects on the people of New York City. These scientifically verified bodies of knowledge make clear in easily accessible and unambiguous terms that there is no need for the expansion of this L.N.G. vaporizer facility that would undoubtedly have a serious -- a series of harmful effects on our health and our environment.

In other words, there is no legitimate reason or justification for the addition of these two L.N.G. vaporizers. Additionally, there is no legitimate justification for imposing these on the community and the overall well-being of the people of New York City. To make a decision against the preferences of these far-reaching communities is to further perpetuate highly destructive structures of

environmental racism that continue to plague especially vulnerable neighborhoods and communities of color with disproportionately high rates of asthma and lung cancer.

At this juncture, anything less than -- anything less than a full denial of these two vaporizers as a volitional choice for environmental violence that will impact especially vulnerable people of New York City, future generations of North Brooklyn residents, and the environment overall.

The construction of these vaporizers is also dishonorable in that it would directly violate environmental justice provisions of the Climate Leadership and Community Protection Act by intensifying and expanding the rate of emissions in what is already one of the most polluted regions in North America.

We demand a thorough review to determine if National Grid's vaporizers are complying with the C.L.C.P.A. including a full greenhouse gas emission assessment and urge the denial of the expansion of this facility. Thank you for your time.

A.L.J. LEARY: Thank you. Our next speaker is Katie Denny Horowitz. Ms. Horowitz, I am

going to give you an opportunity to press star 3 on your phone if you're a call-in user. Not seeing it, I'm going to move along. Stephen Chesler. I do see you, Mr. Chesler.

MR. CHESLER: Yes, thank you.

A.L.J. LEARY: And your line is unmuted. Go ahead.

MR. CHESLER: Okay. Thank you. Yes, I am Stephen Chesler. First name is S-T-E-P-H-E-N. Last name is C-H-E-S-L-E-R. I am -- I'm a 20- year resident of Greenpoint, and I am the Chair of Environmental Protection Committee for Brooklyn Community Board One.

Recently on September 20th this year, Brooklyn Community Board One reiterated unanimous position to the permitting of increasing ratepayer investment in the Greenpoint L.N.G. vaporizer upgrade project citing trucking L.N.G. is extremely dangerous.

This project holds us back from achieving our renewable energy goals, gas pipelines are not safe, gas sourcing is environmentally destructive, and the L.N.G. projects go against City and State climate laws.

The board opposes National Grid's proposed rate hike to expand fracked gas neighborhood in -- infrastructure in our neighborhoods. Particularly opposed the -- the plan to spend tens of millions of ratepayer dollars to add two new L.N.G. vaporizers to the Greenpoint facility.

We oppose this project for the following reasons. It's about creating an excuse to charge ratepayers more money and grow profits for National Grid stakeholders -- shareholders at -- where communities are at risk. Shipping L.N.G. by truck on our roads will put our communities at risk. These trucks are often called bomb trucks because L.N.G. is highly volatile.

This project hold us back from achieving our renewable energy goals. Expansion of L.N.G. goes against City and State climate laws to reduce greenhouse emissions as those laws are implemented will become -- become a stranded asset -- asset that leaves low to middle income New Yorkers to foot the bill.

Greenpoint has incurred decades of environmental stress and abuse from current and past sites that include trash incinerators, reached

transfer stations, plastic factories, oil, and chemical spills and multiple Superfund sites. This project would add and prolong this harmful and unfair history. Thank you.

A.L.J. LEARY: Thank you. Our next speaker is Stacy Johnson. Again, Ms. Johnson, if you are a call-in user, please press star 3 on your telephone, we'll wait for a minute, not quite a minute but. Not seeing any call in user pressing star 3. Okay. Next speaker, Jeffrey Marsar. Mr. Marsar, are you on the line? Yes, I see your line is unmuted, go ahead.

Mr. Marsar, your line is unmuted but we cannot hear you. Okay. Make sure you are -- you have unmuted your computer so we can hear you. All right. I'm going to have to move on, Sarah Brozowski. Sarah Brozowski, are you on the line or are you a call-in user? If you're a call-in user, please press star 3.

Okay. I'm going to circle back, but I'm going to ask our participants if they would like to provide a public statement now, a public comment now to use the raised hand function on your computer, and if you are a call-in user, use the star 3

function. And we will take additional public comments at this time for anyone who wishes to provide it.

I apologize if I've missed anyone, but please let us know that you are there and ready to give a comment by using the star 3 function, if you're a call-in user or the raised hand function, if not. Ms. Kailas, do you see any additional comments that we need to recognize?

MS. GAYER: Hello, my name is Tamara Gayer.

A.L.J. LEARY: Great. Go ahead.

MS. GAYER: Hi, thank you for taking my comments. I'm a decades- long resident of Williamsburg and a mother. And there have been many excellent comments detailing the legalities, detailing the environmental injustice. I want to reinforce all of those and beg you to vote against this rate increase.

I want to reiterate, or you know, just second what the speaker who said this is part of a much larger project. I can tell you as a mother, one of the things that really stand out to me is that my son who is now eleven about three years ago really

took note of one statistic which is that we have about eight years to reverse the climate disaster that we are speeding full force ahead to.

So for National Grid to come and just ask us to double down on that, and also to pay for it means that I cannot go back to my child and say, we've actually done everything we possibly can to avert this. As a renter, I really don't have a choice of the utilities. So I couldn't, you know, even in my small purview pick some other type of energy source.

So we really are reliant on the Commission to inhabit the spirit of what New York State wants, which really started with a ban on fracking. So yes, the fracking itself is not happening in New York State, but again, as a mother, how can I go to the mother of other children in some other state and say it's absolutely fine to frack in your backyard.

And for me, theoretically, to benefit from this fossil fuel and bring it here. And not to say this is a practice which has to stop nationwide, it has to stop globally. We already know that there is -- we have to do absolutely over and above in

everything we can in order to stop this so our children literally will have a planet to live on.

And this proposal is not -- is absolutely the opposite of that. It is also the last phase in a very long and sneaky kind of history of National Grid providing statistics theoretically about necessary increases in demand which only serve to foster this demand and increase it and they were not based on actual needs.

What we actually need is to provide climate safe alternatives for the future for our children because literally our clock has almost run out. Thank you so much for your time.

A.L.J. LEARY: Thank you for your comment. I see Katie Denny Horowitz. Your line's going to -- your line is now unmuted. Please go ahead.

MS. HOROWITZ: Great. Can you hear me?

A.L.J. LEARY: Yes.

MS. HOROWITZ: Great. Thank you. Yes, my name is Katie Denny Horowitz. I'm a 20-year resident of Greenpoint. And I'm also the Executive Director of the North Brooklyn Parks Alliance which

is the parks conservancy that has served the communities of Greenpoint and Williamsburg since 2003.

And I'm here today to speak on behalf of park users. So essentially between 2018 and 2020, New York State has invested millions of dollars in parks improvements a few blocks from the National Grid facilities. Turging -- turning Sergeant Dougherty park into a state- of-the-art playground and skate park.

And just down the road, my organization worked with New York State on transforming nearly seven acres under the Kosciuszko Bridge from a dark abandoned state D.O.T. lot into an innovative public space attracting tens of thousands of audience members each season.

Under the K Bridge Park was designed to be a destination for thousands of community members with the goal of experiencing cultural recreational environmental programs. And together, these two new parks just in the last few years really signal that the area around National Grid has changed since it was created in 1968.

So the heavily industrial Newtown

Creek waterfront, which used to be avoided by pedestrians is now opening up for the first time in recent history. And we've seen them come over by Under the K Bridge Park in particular.

And as the historical pollutants are addressed in large part due to the heroic advocacy of community advocates, especially, the Newtown Creek Alliance. We have more and more children, families, neighbors coming and they're walking, they're biking, and they're exploring the area.

So our opposition with this expansion and the vaporizers is with those people in mind. And my experience in managing the Under the K Bridge Park is that that the industrial area surrounding it, which again, is adjacent to or very close to the National Grid facilities and the environmental impacts specifically from trucks and air.

The area is already dense with truck traffic. It's already dangerous with truck traffic. And we need to be focused on reducing and not increasing pollutants in that density.

Pollutants have really impacted the air quality of the area which has had historical environmental injustices as -- as I think we've all

heard today. And the North Brooklyn Parks Alliance has been looking at these alongside other community partners like North Brooklyn Neighbors like El Puente.

And so what has struck us through those explorations and the data that's been collected is that the health implications are -- are quite clear of these pollutants. And the, you know, that alongside the implications of the B2B, the surge in construction, the historic heavy industrial uses, there is a level of toxic -- toxic -- toxicity that is correlated with negative outcome -- outcomes -- negative health outcomes in our community.

Asthma rates are high in our children so much so that there's been a dedicated pediatric asthma clinic to accommodate certain hospitalizations. So we -- and for National Grid to -- to stop the expansion that is being proposed at this time. Thank you very much.

A.L.J. LEARY: Thank you. All right. Last call for anyone who wishes to provide a public statement at this time. Give you a moment. And I want to, in the meantime, thank our terrific team. Thank you, Judge Costello. Thank you, Mr. McClain.

And of course, the amazing folks from our Office of Consumer Services who made this event happen. And we truly appreciate, as I think the public does, all of your efforts in this regard.

So with that I don't see any other attendees willing to provide a statement or interested. I wish you all a wonderful day. We are off the record and thank you everyone.

MR. DECICCO: Thank you.

THE REPORTER: We are off the record.

(The hearing concluded at 3:07 p.m.)

STATE OF NEW YORK

I, ANTHONY MCCLAIN, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 102, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 26th day of September, 2022.

ANTHONY MCCLAIN, Reporter